

November 2, 2010



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14967
(FIRST REVISION)

EXPIRATION DATE: June 30, 2014

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: GFS Chemicals, Inc.
Columbus, OH
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-time transportation in commerce of certain hazardous materials to a new site approximately 5 miles away exempt from certain requirements of 49 CFR Parts 171-180 provided alternative packaging and operational controls are met as specified herein. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 171-180, except for § 173.21 and the requirements provided herein.
5. BASIS: This special permit is based on the application of GFS Chemicals, Inc. dated June 17, 2010 submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
As appropriate	3, 4.1, 5.1, 6.1, 8, & 9	As appropriate	As appropriate

7. SAFETY CONTROL MEASURES:a. PACKAGING - The following packagings are required:

(1) For liquid and solid hazardous material:

(a) Single packagings that are compatible with contents, safe and structurally sound; or

(b) Combination packages consisting of inner packagings in strong outside packagings, shelved cabinets or similar overpacks. Cabinets must be securely closed by locking or shrink-wrapping. Inner packagings must:

(i) Be such that there will be no significant chemical or galvanic reaction between the inner packaging and its contents;

(ii) Be closed in such a manner as to remain secure and leak-proof under conditions normally incident to transportation;

(iii) Be secured within the outer packaging, cabinet or overpack so as to prevent their breakage or leakage under conditions normally incident to transportation.

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(c) When containing liquids, packagings must be filled so that the liquid does not completely fill the packaging at a temperature of 55°C or less and, in the case of inner packagings, be packed in the strong outside packaging, cabinet or overpack with closures upright.

(2) Hazardous materials must not be packed in the same outer packaging, or overpack with other hazardous or non-hazardous materials if such materials are capable of reacting dangerously with each other and causing:

(a) Combustion or dangerous evolution of heat;

(b) Evolution of flammable, poisonous or asphyxiant gases; or

(c) Formation of unstable materials.

b. OPERATIONAL CONTROLS -

(1) This special permit authorizes the one-way transport of hazardous materials from the existing facilities at 800 McKinley Ave. to the new facility at 800 Kaderly Avenue, Columbus, Ohio, a total distance of approximately 5 miles. All moves must be done by the most direct route, using commercial transport vehicles.

(2) Packages must be loaded on and unloaded from transport vehicles by GSF employees.

(3) Each motor vehicle transporting hazardous materials under this special permit must be accompanied by a separate telephone-equipped vehicle and remain in visual contact with the accompanied vehicle at all times. The driver of each vehicle must be instructed as to actions to be taken in the event of an incident involving the motor vehicle being accompanied and possess appropriate emergency response information.

(4) The driver of each transport vehicle and the accompanying vehicle must possess an itemized listing by proper shipping name or the chemical name of each hazardous material aboard the vehicle.

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- (5) During transportation, a trained and equipped 24 hour Responder team must be located at either the origin or destination location and be accessible by phone to both the driver of the transport vehicle and the accompanying vehicle.
 - (6) Forbidden materials (see § 173.21) may not be transported under the terms of this special permit.
 - (7) The motor vehicles containing hazardous materials must be placarded with "DANGEROUS" placards on each side and each end.
 - (8) Only closed commercial motor are authorized.
 - (9) The maximum outer package size is 55 gallons.
 - (10) Hazardous materials requiring segregation or separation as denoted by "X" in the § 177.848 chart must be separated within the transport vehicle by a distance of not less than three feet.
 - (11) Each outer package, shelved cabinet etc. must have one hazard warning label affixed to represent each hazard class contained therein.
- 8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the package is offered for transportation.
 - 9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.
 - 10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
 - 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

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- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous

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materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: swa